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This is the preliminary injunction hearing following the court's granting of a TRO. The court had issued a TRO on the theory that plaintiff asserted that she was being banned from the premises because she accurately reported an incident that ultimately resulted in the termination of an employee in a manner that would get to the Union representing that employee, and also because she posted what defendant contended were negative and defamatory comments about the venue. The court could discern no harm to defendant by allowing plaintiff to return, and plaintiff had established that her time at the venue was an important part of her life.

Plaintiff also at least raised the possibility that case law did not allow for the arbitrary banning of a patron from a business. The major case upon which plaintiff relief for that proposition is *In re Cox* (1970) 3 Cal.3d 205. In that case, Justice Tobriner of our Supreme Court discussed the interplay between freedom of speech and a business owner's ability to exclude a person from the property.

The plaintiff there was arrested at a shopping center parking lot and charged with a violation of a local ordinance for remaining on the premises after being told by the manager to leave.

Plaintiff claimed that the defendant could not arbitrarily eject him—a potential customer—from the premises because under the Unruh Act, such conduct was not allowed. The Court agreed that a

business owner could not arbitrarily exclude a person from the premises, although the Court stated that reasonable regulations were appropriate. In particular, the Court rejected an overly narrow interpretation of the prohibited bases upon which a customer could be refused pursuant to the Unruh Act but rather concluded that the Unruh Act was meant to bar all arbitrary discrimination.

However, the Court was careful to note that a business could insist that a customer leave the premises where there was a reason. And the Court stated that a business could promulgate reasonable department regulations rationally related to the services

provided. The Court noted that the business, there, was generally open to the public like a town center would be and that it provided important functions upon which the public relied. Accordingly, the business could not, the Court held, bar people who dressed in a particular way any more than it could bar someone based on race. Cox certainly helps plaintiff here. But what it essentially does is shift the burden onto the defense to establish a legitimate business-related reason for excluding plaintiff rather than an arbitrary one.

Here, the defendant initially listed two grounds, both reasserted in this opposition. The first is that plaintiff wrote a letter discussing potential drug use by two patrons and named them. It was not drugs like heroin or cocaine; it was a prescription medication. But plaintiff's point was that the combination of those prescription drugs with the consumption of what would otherwise be a reasonable amount of alcohol made them appear to be intoxicated and led to a slip and fall, and plaintiff wanted to document that the cause was not an employee serving alcohol to an obviously intoxicated person. Defendant contends that writing the letter and using the patrons' full names was not proper. The court has some misgivings. Had plaintiff posted the full names on the internet, the court would have no problem agreeing with the defense. But this was in a letter given to the employee in question who was potentially going to be disciplined over the incident and forwarded to the union. (It is addressed "Union 11," which is the relevant local.) Defendant also contends that plaintiff verbally told hotel personnel of the incident and again used names. This seems thin to the court. It was a conversation that related to an incident that plaintiff saw. One can argue whether plaintiff's inferences and conclusions were proper, but it is not "gossip" in the sense defendant suggests, and it was not published to the world, but apparently told to hotel staff who plaintiff at least thought needed to know. The negative posting is a bit harder. Plaintiff apparently posted that she was told by hotel management to keep quiet about the theft of some of her belongings. The defense says that this was an untrue statement and defamatory. Whether a business can bar someone from the premises who makes defamatory comments about the business is a very close question. There is a statute that bars a business from conditioning a sale on the customer agreeing not to post negative reviews about the product, but that is not at issue here. The court notes, though, that plaintiff took down the post when

defendant requested that she do so. The court's view is that this posting, taken down at defendant's request, is too thin to constitute a valid reason to bar her from the premises. The defense also complains that plaintiff over-used the hotel's complaint line. The court frankly does not even understand that allegation.

At the last hearing, the court granted the TRO, in large part based on the lack of any harm that might come to defendant. However, this is the preliminary injunction stage. According to the defense, after she was allowed to return to the premises, plaintiff loudly proclaimed that she is "the Queen" and that "You can't get rid of the Queen." She is also accused of being disruptive at the bar and trying to entice employees to violate company policy on tipping. The court's concern is that plaintiff is using the injunction as a sword rather than a shield. By proclaiming that she could not be removed, she was indicating that she was immune from other rules, which is not true. By being disruptive, she provided the defense with a legitimate reason under Cox to remove her. By trying to convince employees to violate the tipping policy (by taking a separate tip rather than adhere to the pooling policy), plaintiff also provided a reason to exclude her. But having said that, the evidence the defense provides does not support the bold claims made in the brief. As to the tipping issue, the court has no admissible evidence that this ever happened. The court has a hearsay declaration in which the declarant claims to have been told by Turner that plaintiff had asked to tip him directly. But that is classic hearsay. Worse, defendants submitted a declaration by Turner, who makes no such statement, which is a red flag to the court. The "Queen" comments were, according to plaintiff, made to Turner (who did declare that she made a "Queen" comment), but plaintiff states that is in part because she, her guest, and Turner were talking about Honeybees and that the comment was not made loudly to the world, but only to Turner and her guest and could not otherwise be heard. Plaintiff's companion confirms that testimony. Turner is completely silent as to context. There is no other evidence that plaintiff was in any way disruptive.

The court will need to consider this more carefully, but the court is very concerned with plaintiff's claims that defendant is making things up. That is especially so given that the tipping comment was made to Turner, who allegedly related it but Turner did not confirm it in his declaration (and plaintiff denies it, showing that she routinely adds a tip amount to the tab, which the court would assume is consistent with the pooling policy). The

court may need to hear from Turner directly.

He is also the person who witnessed the "Queen" comment. The court is inclined therefore to CONTINUE the matter until the court returns from leave (meaning about a month). The alternative would be to grant the motion on the basis that the defense evidence of new conduct appears to be suspect, but without prejudice to allowing defendant to move to dissolve the preliminary injunction based on firmer evidence. The court prefers to continue, though, because so much briefing has already been done. The court notes that there are a host of objections. The court does not really see any of them as terribly consequential other than the one discussed herein.